openFuyao Project Individual Contributor License Agreement

By signing this Individual Contributor License Agreement, I understand and agree that this Project and Contributions to it are public and that a record of the Contribution (including all personal information I submit with it, including my name and email address) is maintained indefinitely and may be redistributed consistent with this Project, compliance with the open source license(s) involved, and maintenance of authorship attribution.

Thank you for participating in the openFuyao project ("this Project") incubated and hosted by Huawei Technologies Co., Ltd. ("Huawei"). Huawei is the legal entity that signs this Agreement with You on behalf of this Project. By signing this Agreement, You agree to and are bound by this Agreement.

To clarify the intellectual property license granted by individual contributors for "Contributions," each individual contributor to this project is required to sign an "Individual Contributor License Agreement for the [openFuyao] Project" ("this Agreement") and submit it to Huawei for archiving, indicating that the contributor agrees to the following terms: This Agreement protects You as a contributor and also protects this Project and its users.

Please read the content carefully before filling in and signing this Agreement. You can keep a copy of this Agreement.

1. **Definition**

   "The Project" refers to the openFuyao project incubated and hosted by Huawei, accessible through the code repository listed in Appendix A (or any updated address as notified in writing by Huawei), or the code of the openFuyao project otherwise provided to You by Huawei (e.g., via email or other means).

   "Works of this Project" refer to computer programs and accompanying documents released by Huawei in the code repository of this Project, including any updates and upgrades of them.

   "Contributor" or "You" refers to the individual contributor who signs this Agreement and voluntarily submits "Contributions" to the Project.

   "Contributions" refer to the code, documents, reports, and other documents submitted by You to be combined, incorporated into the Works of this Project, as well as other modifications and suggestions for modification made by You, including the aforementioned items which You have the right to authorize.

   "Submission" refers to delivery in the form of electronic, oral, or written communication to the designated address or a representative of this Project, including but not limited to communications and exchanges on e-mail lists, source code control systems, and issue tracking systems managed by this Project or its representatives for the purpose of discussing and improving the Works of this Project, excluding the content marked explicitly or in other forms of writing as "non-contribution" by You.

   "Affiliates" refer to any companies or other organizations currently or in the future controlled by, control, or under common control with a party. "Control" refers to: (i) having the power to lead or manage the entity directly or indirectly through a contract or otherwise, or (ii) having 50% or more of the publicly traded shares of the entity, or (iii) having the actual ownership of the entity.

   "Derivative Works" refer to new works created under this Project based on the Works of this Project, including but not limited to those created through modifications, rewriting, translation, assembly, compilation, comment addition, or conversion in any form.

2. **License Granting**

   i. Subject to the terms and conditions of this Agreement, the Contributions You submit under this Project shall be jointly owned by Huawei and You as of the date of submission. You understand and agree that Huawei

has the right to independently initiate legal proceedings or take other legal actions for rights protection as a co-owner of the intellectual property rights.

ii. Subject to the terms and conditions of this Agreement, notwithstanding the terms specified in Section 2.i, You hereby grant Huawei and its Affiliates a perpetual, worldwide, no charge, royalty-free, sublicensable, and irrevocable license to exercise the following rights:

a. Copy, use, modify, distribute, run, and display Your Contributions;

b. Use or entrust a third party to use Your Contributions to produce Derivative Works under this Project;

c. Select an appropriate open source license for Your Contributions or Derivative Works that have incorporated Your Contributions and release them.

3. **Grant of Patent Rights**

Subject to the terms and conditions of this Agreement, You hereby grant Huawei and its Affiliates a perpetual, worldwide, non-exclusive, no charge, royalty-free, irrevocable, and sublicensable patent license to make, have made, use, offer to sell, sell, import, and otherwise transfer Your Contributions and Derivative Works that have incorporated Your Contributions or any part thereof. The aforementioned patent license is limited to those patents You now or hereafter own or control, to the extent that such patents would be infringed by your "Contribution" or any part thereof or by its combination with the Works of this Project. If any third party initiates a patent litigation (including cross-litigation or counterclaim) or other patent rights enforcement actions against You or other entities, alleging infringement of the patents of such third party by Your Contributions or the aforementioned combination, the patent license granted by You to the third party in accordance with this Agreement shall terminate as of the date when the third party initiates the patent litigation or otherwise enforces its patents.

4. **Contributor Obligations**

i. Unless otherwise agreed by Huawei and You, or Huawei has made the Works of this Project, Your Contributions, or Derivative Works that have incorporated Your Contributions open source, You are obligated to keep the Works of this Project, Your Contributions, and Derivative Works that have incorporated Your Contributions confidential. You shall not distribute or disclose the above works to any third parties, or disclose, publicly disclose, display, release, or distribute them in any form.

ii. If You intend to submit a work with any part that is not Your original work, You shall distinguish such a part or parts from Your Contribution before submitting the work to this Project. You shall identify to Your best efforts the source of such a part or parts and the full details of any existing restrictions (including but not limited to restrictions on intellectual property rights such as copyrights, trademarks, and patents), and indicate in a prominent manner that the work is "submitted on behalf of a third party" and the name of the third party.

iii. When You find that the submitted Contributions have major errors or incomplete information, You shall notify a project representative as soon as possible. Unless You wish to, You do not need to provide support services for Your Contributions. You can provide support services free of charge or for a fee, or do not provide support services at all.

iv. If You need to make any changes to Your contacts under this Project, You are responsible for notifying Huawei or a project representative.

5. **Representations and Warranties**

i. You undertake and warrant that You have the right to license as specified in Section 2 and 3 of this Agreement. You further promise that each employee or individual contributor You designate through this Project has the right to submit Contributions on Your behalf.

ii. You promise and warrant that Your Contributions are Your original works, or that You have obtained relevant authorization to contribute to this Project under this Agreement, and that Your Contributions do not include illegal content.

6. **Disclaimers**

   This Project and Huawei make no express or implied warranties of any kind regarding the Works of this Project and the Contributions of Contributors, including but not limited to any warranties of FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, MERCHANTABILITY or SATISFACTORY QUALITY.

7. **Liabilities for Breach**

   i. In the event that a contributor breaches this Agreement, the contributor shall immediately take remedial measures and correct the breach within 30 days. If the breach is not corrected within the specified period, Huawei reserves the right to require the contributor to bear all losses incurred to Huawei.

   ii. In the event that a contributor breaches Section 4.i of this Agreement, Huawei reserves the right to terminate Your access to the code repository of this Project and the right to request the contributor to bear all losses incurred to Huawei.

8. **Amendments**

   The version and amendments of this Agreement shall be determined by Huawei. By continuing to provide Contributions to this Project, contributors are deemed to have accepted the latest terms of this Agreement.

9. **Applicable Laws and Dispute Resolution**

   This Agreement shall be governed by the laws of the People's Republic of China in terms of its establishment, validity, interpretation, modifications, enforcement, and dispute resolution. Any dispute arising out of or in connection with this Agreement shall be resolved through amicable negotiation between the two parties. If such negotiation fails, either party may submit the dispute to the competent People's Court at the location of the defendant for litigation.

Appendix A: Address of the openFuyao Project

[1]. **https://gitee.com/openfuyao**